CONTRACT TITLE: Software Subscription with Embedded Amendment
CONTRACT ID: C06
CONTRACT TYPE: saas
EFFECTIVE DATE: 2027-01-01
PARTY A: Aurora Systems Private Limited (the "Company")
PARTY B: Lumen Stack Private Limited (the "Counterparty")
GOVERNING LAW: India

1 PARTIES AND SUBSCRIPTION

1.1 Aurora Systems Private Limited (P01, Subscriber) licenses TOOL-LUMEN from Lumen Stack Private Limited (P07, Vendor). This document includes the original agreement and an executed amendment. Company legal notice address: aurora-legal@aurora.example. Counterparty legal notice address: legal@lumen.example.

2 TERM

2.1 The original agreement is signed on 2026-12-20. Subscription runs from 2027-01-01 through 2027-12-31 inclusive and automatically renews for one year unless valid non-renewal notice is given under clause 3.1 of C06 as amended when applicable.

3 ORIGINAL NOTICE WINDOW

3.1 In the original agreement, Subscriber must give notice at least 60 calendar days before the current term end date. Notice must be received at notices@lumen.example by 17:00 UTC on the calculated cutoff date and identify TOOL-LUMEN. See the embedded amendment clause 19.1 of C06-clause 19.3 of C06 for its limited change and effective date.

4 SUBSCRIPTION PRICE

4.1 The license fee is INR 120,000 for the initial year, due on 2027-01-31 at 17:00 UTC under invoice LUMEN-2027. Renewal price remains INR 120,000 per year. There is no agreed late charge.

5 SERVICE SCOPE

5.1 Subscriber may use TOOL-LUMEN for internal document indexing only. This subscription neither changes APP-ATLAS obligations nor incorporates any Lumen marketing statements.

6 TERMINATION

6.1 A material-breach notice received at the other party legal email gives a 10-calendar-day cure period, ending at 17:00 UTC on the tenth following date. After an uncured breach a separate termination notice may be served. Vendor legal email is legal@lumen.example; Subscriber email is aurora-legal@aurora.example.

7 MISSING EXIT FEE SCHEDULE

7.1 On early termination, Subscriber shall pay the migration fee stated in Schedule B. Schedule B is not attached to this execution copy. No numeric migration fee, formula or waiver appears elsewhere in this agreement. Non-renewal at term end is not early termination. Obtain Schedule B before quantifying an early-termination migration fee.

8 PRECEDENCE AND SURVIVAL

8.1 Only an expressly executed amendment may change this agreement. The embedded amendment changes only the identified notice period from its effective date; other obligations, accrued charges, and missing Schedule B remain unchanged. No general replacement is intended.

9 TIME AND DISPUTES

9.1 Calendar days and UTC apply, without holiday adjustments. Date-only deadlines end at 17:00 UTC. Indian law and exclusive Bengaluru courts apply. Financial figures exclude taxes.

10 EXECUTION

10.1 Mira Sen for Aurora and Nikhil Roy for Lumen record execution on 2026-12-20.

11 LIMITATION OF LIABILITY

11.1 For service unavailability or delivery delay, the exclusive remedies and caps expressly stated in this agreement apply. For other claims, each party aggregate liability is capped at INR 1,000,000, except fraud, wilful misconduct and indemnity obligations. No cap from another contract is incorporated.

12 INDEMNITY

12.1 Each party shall indemnify the other against third-party claims caused by its infringement of intellectual property rights or unauthorized disclosure of confidential information, including reasonable defense costs. The indemnified party shall promptly notify the other party and reasonably cooperate in the defense.

13 CONFIDENTIALITY

13.1 Each party shall protect the other party non-public commercial, technical and personal information, use it only to perform this agreement, and restrict access to personnel bound by confidentiality. These obligations survive termination for 3 years, except information already public without breach.

14 COMPLIANCE

14.1 Each party shall comply with laws applicable to its own performance, including the Digital Personal Data Protection Act, 2023 where applicable and GDPR for processing within its applicable scope. Where personal data is processed, access controls and documented incident-response procedures shall be maintained. No ISO certification is represented by this clause.

15 ASSIGNMENT

15.1 Neither party may assign this agreement without the other party prior written consent, except an assignment to an affiliate on 30 calendar days written notice if the assigning party remains liable. A change of control does not silently replace a contracting party or waive a consent requirement.

16 FORCE MAJEURE

16.1 A party prevented from performing by an event beyond its reasonable control shall notify the other party within 5 calendar days after discovery and provide evidence of the affected obligation and mitigation. Accrued payment obligations are not excused. Relief requires a causal connection and does not apply automatically to every outage or supplier delay.

17 EXCLUSIVITY

17.1 This agreement is non-exclusive. No non-compete or restriction on dealing with other counterparties is imposed except as expressly stated in this clause.

18 TERMINATION FOR CONVENIENCE

18.1 Either party may terminate for convenience by written notice received at the other party legal notice address at least 30 calendar days before the proposed termination date. Accrued payment obligations and express survival provisions remain effective. Any expressly agreed early-exit fee remains subject to its stated conditions.

19 EMBEDDED AMENDMENT

19.1 LIMITED CHANGE. Aurora and Lumen, as the same parties to C06, execute this amendment on 2027-01-10. Effective 2027-03-01 at 00:00 UTC, replace only the words "60 calendar days" in clause 3.1 of C06 with "30 calendar days". The amendment is prospective from that effective instant.

19.2 PRESERVED PROVISIONS. All other C06 terms remain unchanged, including its year-end term, notice receipt address and time, annual price, and the absent Schedule B. Before 2027-03-01 at 00:00 UTC, the original 60-day provision is applicable. The amendment does not replace the original agreement or waive accrued rights.

19.3 AMENDMENT EXECUTION. Mira Sen for Aurora and Nikhil Roy for Lumen record amendment execution on 2027-01-10. All provisions not expressly changed remain in force.